

Chapter I

Evidence Law General Introduction

Meaning, Purpose and Nature of Evidence Law

What is evidence?

- The word “evidence” is originated from a Latin term “evidentia” which means to show clearly, to make clear to the sight to discover clearly certain, to ascertain or to prove.
- Thus, evidence is something, which serves to prove or disprove the existence or non-existence of an alleged fact.

- The party who alleges the existence of a certain fact has to prove its existence and the party, who denies it, has to disprove its existence or prove its non-existence.
 - NB: all facts traditionally considered, as evidence may not be evidence in the eyes of evidence law.
- ❑ So, evidence is something presented before the court for the purpose of proving or disproving an issue under question.

The Meaning of Evidence Law

- Different writers define evidence law according to their own perceptions but with similar messages.
- The difference is one defines in a more elaborated way while others do not.
- **Mc. Cormick** defines evidence law as “... the system of rules and standards by which the admission of proof at the trial of a lawsuit is regulated.”
- The above definition is not as such very helpful since it fails to incorporate what things are going to be dealt with by the course.

- **Robert Arthur Melin**, defines evidence law as the body of legal rules developed and enacted to govern:

A. **facts that may be considered in court**

1. Facts in issue

2. Facts relevant to facts in issue

B. **the methods of securing consideration of these facts**

1. **By proof**

- i. Real (e.g. documentary, exhibits) evidence

- ii. Oral evidence

2. **Certain facts which need not be proved**

- i. **Judicial notice**- Facts so notorious as to be facts in public knowledge, capable of being verified by authoritative texts.

- ii. **Judicial admission** (facts admitted in pleadings, at open court, in examination of parties, in testimony etc.)

C. The party that must secure consideration of what facts:

- burden of proof and
- degree of proof required to win the case.

D. At the Appeal level evidence law can be said to deal with the effect of failure to comply with rules of evidence.

- e.g. improper admission or rejection of evidence

- Does evidentiary error constitute a reversible error?
- Shall we consider evidentiary error as harmless error?
- What is the stand of the Federal Supreme Court Cassation Division?

Nature of Evidence Law

- Laws may broadly be classified into substantive and adjective.
- Substantive laws
 - are those that define rights and duties.
- Adjective laws are concerned with
 - the method of presenting cases to court and proving them or
 - enforcing the rights and duties provided under the substantive laws.

- NB: adjective law is as important as the substantive law. Why?
- the rights, privileges and duties that exist under substantive law will mean nothing unless they can be enforced.
 - Law of evidence is categorized under adjective law together with procedural laws, both criminal and civil procedure.

- Although evidence law shares the commonality with procedural laws in the sense that both are means to the enforcement of the substantive law, it is not strictly speaking procedural law.
- Why?
- Because, there are certain issues procedural laws never address and are left to evidence law.
 - the standard of proof,
 - facts to be proved or need not be proved and
 - the value to be given to each term of evidence etc.

- Law of evidence is more of practical course.
 - It has more of the smell of the courtroom than most law school classes and
 - it offers the opportunity for some court- room type exercises.

- Ethiopia **does not** have evidence code but rules of evidence are **found widely scattered in both substantive and procedural law.**
 - proof of marriage,
 - proof of will,
 - proof of contract,
 - proof of ownership and
 - a lot of legal presumptions that relate to evidence.
- **In this case, the problem that you would face is whether law of evidence is part of procedural or substantive law?**

Purpose of Evidence Law

- The purpose of law of evidence
 - regulating the process of proof
 - making the search of truth to be completed with in a short period of time and with a little cost of litigation.

Development of Evidence Law

- the need for evidence can be traced back to a time when people started to settle disputes before third parties.
- Different concepts of evidence law such as relevancy of evidence, the duty to come up with evidence, proof by witnesses were practiced since ancient time even though they were not in such organized and comprehensive manner.

- The present rules and principles of evidences are the outcome of the successive development, conducted in different stages of human civilization.
- In its very stage of development, there was no any distinction on the rules of civil and criminal evidence.
- Moreover, the means they use to prove a disputed fact may not be well founded to ensure the rational basis of decision making.
- In other words, the evidences which were applicable at that ancient time were irrational.

- Generally, we can classify the ancient means of proof in to two:

- i. Proof by ordeals and

- ii. Proof by oath

- ❑ As we go back in history, the influence of religion is so strong that it is hardly possible to exclude religious notions.

- ❑ As a result, the above ancient means of proof had practiced for the past many years by using the psychological impacts of religious belief on the society.

i. Proof by Ordeals

- Ordeals were used to identify the person who did wrong.
- Ordeal is about subjecting somebody to undergo a painful experience like walking on fire, holding glowing with heat, put hands in to boiling water etc..
- The idea is that where a person who underwent the ordeals is not seriously affected like when the wound that resulted from the ordeal normally cures it is taken as a proof of innocence. If it, however, gets infection this is taken as proof of guilt.

Proof by Battle

- Here the victim and the accused required to fight to each other.
 - if the victim wins the accused, the accused will be considered as criminal and convicted.
 - if the accused wins the victim, the accused will be free.

Proof by Oath

- ❑ Since proof by ordeals were extremely irrational and inhuman, relatively modern and human means of proof began to replace them immediately after 15th c.
- ❑ the accused/ defendant is required to take an oath before his testimony in his own case.
- ❑ Since the testimony of the accused/defendant under oath was not sufficient alone, the courts required the testimony of supporting witnesses (compurgators).

❑ However, such compurgators were not required to testify on the merit of the fact rather their testimony was limited in confirming to the court of law about the truthfulnesses of the oath given by the suspect.

- Gradually, the above ancient ways of proof had begun to replace by the new and modern concepts of evidence rules.

- The writing of different scholars, judicial decisions and different laws enacted at different times based on different legal traditions become instrumental for the then development of rules and principles of evidence.

The Case of Ethiopia

1. the “laeba shai” method

- was applied to solicit admission from a suspect in the time when it becomes difficult to get witnesses.
- In this method of proof, a person was made to drink some herbal solution that would intoxicate him and he was left to run amuck and whoever is implicated by this person would be considered as the criminal.

2. Afersata or awchachigh

- it replaced the *Leba shai* system.
- since the crime is against the community, it involves the participation of the whole community.
- the member of the society may detect the crime and the criminal in secret manner, for instance by indicating the name of the criminal through poem.
- What do you think the basic deficiencies of the methods of proving in “Afersata” and “Leba shai” ?

Evidence in Civil and Common Law Legal Systems

- There are two major legal systems (legal traditions) in the world.
- These are:-
 - (1) The Anglo - American (or the common law legal system) and
 - (2) The continental or the civil law legal system.
- Insofar as evidence law is concerned the *difference between the two legal systems* may relate to form or emphasis with some respects.

(A) Differences regarding the organization of the rule of evidence

- In the common law legal system, there is a **separate rule of evidence or separate code of evidence law.**
- In the continental system there is **no separate code of evidence law.**
 - **Rules of evidence are sparsely distributed in both substantive and procedural laws.**

B) Difference Regarding the Sources of Evidence Rules

- In common law legal system cases serve as source of evidence rules in addition to legislations enacted by the law-making organ.
 - judges made evidence rules due to the existence of the precedent system.
- In the continental system- laws are enacted by the parliament.
- What about Ethiopia?
 - Read Art. 10(2) of proclamation No 1234/2021

C. The difference regarding the system of inquiry

- The common law countries employ the 'Adversarial system' of evidence gathering in which two parties present competing version of the truth. So, it is a party-lead system in which the judge has no investigative role.
- The civil law system employ the 'inquisitorial system' of inquiry in which the court has the task of making inquiry/ investigation.
 - As a result, the trial judge plays a far more active role than his adversarial counterpart.
 - **Investigative judge in France.**

- **What about the Ethiopian system of inquiry?**

D) The differences on the types of evidences they emphasized

- Under common law legal system, the greatest weight and importance is attached to oral testimony of the parties and their respective witnesses. Therefore, documentary evidence is generally regarded as being inferior to oral evidence.
- In continental law system like in France and Germany, emphasis is laid on written evidence.
- NB:- witness and documents exist in both systems but the emphasis each system gives differs.

E) Are parties themselves competent witnesses in their own case?

- In common law legal systems, parties themselves are competent witnesses in their own case.
- In civil law system, it is considered best if no one is a witness in his own case.
 - Even the exclusion extends to third parties, like spouse, relatives and other closely related person's of the party since it is not likely to expect a neutral testimony form such persons.

- *What about the case of Ethiopia?*
- Read Art. 261 (2) of the civil procedure code and Art 142(3) of Cr.Pr.Co. + Art. 20 (3) and Art. 20(4) of the FDRE Constitution.

F) Is hearsay evidence admissible as a rule?

- The oral evidence must be direct in common law legal systems. Here, there is a rule, which excluded hearsay evidences.
- In civil law legal system there is no rule which excludes "hearsay" evidence. Rather, it is left for the court to decide the value of what has been said.
- Art. 137(1) of the Cri. Pro. Code.
- Art. 263(1) of the Civ. Pr. Code
- Go to Chapter 4 for the details.

Evidence Law in Ethiopia

- the Ethiopian evidence rule is traced back to the ancient days Fitha-Negest, the document which governs the spiritual and secular life of the society before the enactments of modern codes.
- The document contains many provisions dealing with proof and means of proof, for instance it stressed the importance of man's oath in court and prevented parties and their kinsmen and close relatives from testifying.
- Moreover, it stresses the value of witnesses and contains its own hearsay rule.

- Different traditional means of proof like Afersata , lebashai , waqif sera had been in use etc., until the enactment of the modern codes.
- The drafters have tried to reflect the sprits of those customary practices and fetha negest in those modern codes.

Do you think Ethiopia has a separate code of evidence?

- Ethiopia does not have a separate and codified law of evidence.
- The evidentiary rules are found scattered throughout substantive (criminal law, the civil code, commercial code, etc.,) and adjective laws (mainly the criminal procedure and the civil procedure).
- The scattered evidence rules are far from being complete.

- There are gaps in statutory evidence provisions which allow for a great deal of judicial discretion.
- This means, in order to fill the existing gaps, the courts are using those internationally accepted rules of evidence in their day-to-day activities.
- For instance, many of the principles of the draft evidence rules of **1967 (DER)** have been in use in our courts without citing them as a law since they are not yet ratified by the law-making organ of the country.
- This is not by accident but it is necessitated by the fact that our procedural laws required the implementation of some of the principles of the draft evidence law.

- Generally, we can classify the present sources of Ethiopia's evidence rules in to three: -

- i. The evidence rules which are found scattered through out our substantive, Procedural and other proclamations,
- ii. Modern and internationally accepted principles of evidences, and
- iii. Cases (for basic error of law only) Proc. No 1234/2013 Art. 10(2)

Q. Explore at least five judgments of the FSC Cassation division on Evidence law.

- NB: On Sep. 26,2020 the Council of Ministers endorsed **the draft Criminal Law Procedure and Evidence Code** and referred the draft to the HPR for ratification.

Evidence Law in Civil and Criminal Cases_

- Since the relief sought as well as the purpose of instituting civil and criminal cases is different, there are differences regarding the strictnesses of the evidentiary rules applicable on those two cases.

1. the right to a fair trial

- relevant evidences can be excluded in criminal cases eg. , antecedent of the accused person see art 138 of cr.p.c)
- in civil proceedings, evidence that is relevant and probative of a fact, which needs to be proved to the court, will generally be admissible. Hence, there are no mandatory rules requiring the exclusion of evidence in civil cases.

2. Burden of proof

- the accused person is not expected to adduce evidence if the public prosecutor fails to prove his case in the required standard of proof.
- Hence, the burden of proof always falls on the public prosecutor save for admission.
- Art. 136(1) and 141 of the Cr. P.C

- Exception
- the burden of proof may shift to the accused person in certain instances.
Proclamation No. 881/2007 Art. 3
& 21

- the legal burden of proof in civil proceedings is that "he who asserts must prove". Read Art. 2001 of the civil code.
- Therefore, in civil cases, the burden of proof first lies in the plaintiff. However, this burden of proof will shift to the defendant if the defendant admits the allegations and come up with positive defenses.
- Read art. 258(1) of the Civ. P.C.

3. the standard of persuasion

- Criminal cases
 - beyond reasonable doubt (common law legal system)
- Civil case
 - preponderance of evidence (for most cases)
 - clear and convincing(for few cases)
- What about Ethiopia?
- Art. 141 Cri. Proc. C.
- Volume 19 File no. 113464
- The draft criminal law procedure and evidence law Art. 296(1)

4. In civil cases there is greater reliance up on the admission of evidence in documentary form while in criminal cases oral testimony plays a pivotal role.

5. Admission

- Art. 133 with out reservation + adducing evidence
- In civil cases evasive denial amounts to admission.
- Exception. Art.235(2)

Chapter II

Proof Without Need to Establish Evidence

- The general rule in both civil and criminal proceedings is that where a party has the legal and evidentiary burden of proof on a fact in issue, the fact has to be proven by relevant and admissible evidence.
- However, there are three exceptional situations where by allegation of a fact by a party does not necessarily need proof. These are;
 - **Admission of facts**
 - **Presumptions**
 - **Judicial Notice**

1. Admission of Facts

- *What is admission?*
- Admission is a statement of fact which waives the production of evidence by conceding that the fact asserted by the opponent is true.

- *Do you think the term “admission” is applicable in both civil and criminal cases?*
- In some countries the term “admission” is only used in civil cases and “confession” in criminal cases. While others used the term “admission” in both civil and criminal cases.
- *What is the position of Ethiopian laws in using the terms?*
- Read the following provisions.
- Art. 241, 242 and 235(2) Civ. P.C and **Art. 2002 of civil code.**
- Art 134 (1) of Cr.P. C
- Art. 19(5) of the FDRE constitution

- Our laws used the term “admission” in both civil and criminal cases.
- NB: We cannot get a provision which used the term “confession” in civil cases.
 - *Why admitted facts need no proof?*
- Courts are set up to try issues in dispute. When no dispute exists, proof should not be required.
- Thus, where a party admits the truth of a fact in issue in the case, the fact ceases to be in dispute between the parties.

- Art 242 of civ-p.c and Art 134(1) of cri.p.c require the court to pass judgment on the admitted facts.
- However, the court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions as provided under Art 235(2) of civ.p.c and Art 134(2) of cr.p.c.

- Confession does not necessarily avoid the need for proof and this makes confession a very weak kind of evidence.
- Read Art. 134(2) and 135 of the Cr. P.C

- In the time when one of the co-offenders made a confession affecting him and some other persons involved in the commission of an offence, the effect of confession shall be limited only on such person who made it.
- *What about in civil cases involving indispensable parties?*
- *Art. 40(2)*
- *Art. 66*
- *Art. 43(3) ????*

Classification of Admission

- Admission can be

- Formal or
- Informal

A. Formal Admissions

- **admission** in statement of defense Art. 234
- **admission** in open court in the first hearing or at the trial Art. 241 of the Ci.P.C and Art. 134(1) of the Cri. P.C)
- admission during interrogation Art. 27(2)
- confession made in a court before the opening of a preliminary inquiry or trial Art. 35 Cri. P.C

B. Informal Admission

- is a written or an oral statement made by a party or by a person connected with the party that is adverse to that party's interests, and is most commonly made in a letter, fax or an e mail.
- An informal admission may also be made orally in a witness's answer to a question asked in cross-examination.
- Mostly, informal admissions are out-of-court admissions to a person who are not authorized to accept admissions, for example, to a friend.

Judicial and Extra- Judicial Admissions

A. Judicial Admissions

- Judicial admissions are those admissions made as part of the proceeding in the lawsuit.
- The mere fact that the admission is made before the court of law does not make it a judicial admission.
 - Example Admission given as per Art. 35 Cri. P.C is not judicial admission.
- To be considered as judicial admission it should be given before the court which handled the case.

B. Extra- Judicial Admissions

- admissions that are made out of court either orally or in a written form.
- Example
 - confession made before the investigative police (see Art 27 of cr.P.c)
 - confession made in a court before the opening of a preliminary inquiry or trial Art. 35 Cri. P.C

- Extra judicial admissions are evidentiary admissions that may be submitted as evidence but are not conclusive as judicial admissions. Hence, they may be challenged.

- the discretion is given to the court as to how much weight shall be attached to evidentiary admissions.

- If such an out of court admission is proved and not contested in any way the court may well believe the fact admitted to be true.

NB:- when we talk about admissions as facts which need not be proved, we do not refer to all admissions but to judicial admissions only.

Judicial Admission in Civil Cases

- In civil cases, judicial admissions have the power to withdraw a fact from being in issue and avoid the need for proof.
- The effect of judicial admission is destructive in civil case.

Why?

- they cannot be contradicted once they are made, and for the other the court may not require further proof because of less standard of proof required in civil cases.

- Judicial admissions may be made through different ways.

1. Facts expressly admitted in pleadings.

- A party may formally admit a fact in his statement of defense. Art. 234

2. Facts admitted by implication

- Read Art 83,234(1)(e)and 235(2) of civ-p-c.

Exception:- As per Art 235(2) of the civil pr. code evasive denial should not be considered as admission regarding **person under “disability”**

- **Why so?**
- **What if the person under disability is represented by a legal representative** as per Art. Art 34(a) of civ-p-c?
- **What if the legal representative is also under disability?**
- **What if a person who is not under disability represents a person who is under disability?**

- From Art 235(2) of the civil pr. code we can understand that even judicial admission in civil case is not conclusive.
- *Do you think that courts of law may use their discretion and require any fact so specifically admitted to be proved?*

- 3. Admission during Pre-trial hearings and at the trial

- admission may be made by a party or his pleader during examination of first hearing pursuant to Art 241 of civ.p.c code or at a later time when called up on by the court to indicate whether he admits a fact or not see Art 243 of civ.p.c.

- Q. Should failure to cross examine be taken as admission?

- In criminal proceeding Art 140 of cr.p.c provides that “failure to cross-examine on a particular point does not constitute an admission of the truth of the point by the opposite party”. But we can not get such kinds of provision in our civil procedure code.

Q. May a party deny a certain fact in first hearing of which he has admitted previously in his pleading?

- Read Art. 241(1) of the civ.p.c.

4. Facts admitted by a party who testifies before a commission

- Read Art. 122, 127 and 128(2) of the civ.p.c.

5. Admission by testimony of the party on the stand or by statement of his counsel

- Read Art. 261(2) of the civ.p.c.

F. Admission by agreement of the parties

- Facts may be admitted by a party in a written agreement made before the hearing with the other party.
- This may be made even in response to a formal request to admit.
- According to **Art 252 of civ.p.c**, the parties may agree as to the question of fact or of law to be decided between them and they may state the same in the form of an issue. In such case the fact what was previously an issue may be admitted and the issue requiring trial may be narrowed. Thus, such facts which are admitted under the agreement would appear to be conclusive on which the court can pass judgment.

2. Admission in Criminal Case

- Admission should be without reservation and it should be made voluntarily and intelligently. Art. 134(1)
- The mere response of the accused i.e. *“yes I am guilty”*, for the question of the court whether he pleads guilty or not, should not be considered as admission.
- The statements of the accused to be considered as admission he has to get the chance of responding each and every elements of the offence charged.

❑ Conviction based on admission comes in to picture if the accused admits without reservations every ingredient in the offence charged. Art. 134(1)

Exception

❑ Although the accused admits without reservations every ingredient in the offence charged, the court may require the prosecution to call such evidence for the prosecution as it considers necessary and may permit the accused to call evidence. Art. 134(2)

- **Why Art. 134(2) of the cr.p.c requires the prosecutor to call evidence?**
- Because the accused might have made the admission due to various reasons like to cover another person or to make unknown a certain fact, to be famous by his criminal act especially in the case which gets large media coverage even though he is innocent.
- **Art. 134(2) employs the word “may”. So it is the discretion of courts to order the prosecutor to call evidences.**

- Extra Judicial Admission in criminal cases has evidentiary value. Hence, can be contested by adducing evidence.
- Why extra judicial admission in criminal cases are not conclusive?
- the police may use force or coercion either physical or psychological to obtain admission.

- Even in common law countries like England , the **confession made during police investigation may be excluded on the ground of unfairness.**
- This is the case when the suspect made his statements with out informed of his right which they call **“Miranda warning”**.
- Reasons for seeking exclusion of confession evidence under this situation may include denying access to a solicitor, lying to the suspect or tricking him in some way, failing to record the interview properly, failing to inform the suspect as to his right to keep silent and failing to inform the fact that any statement he may make may be used in evidence.

- May the court exclude the confession made under Art 27 of cir. p.code due to the mere fact that the suspect is not informed about his right before investigation?
- Read Art. 19(2) of the FDRE Constitution.
- Is there any difference between admission made to a police as per Art. 27(2) and admission made to a court as per Art. 35 of the Cri. Pro. Code?
- Is it possible for a court to convict the accused on the strength of his extra - Judicial confession alone?

2. Presumptions

- *What is presumption?*
- Presumption is an inference made about one fact from which the court is entitled to presume certain other facts without having those facts directly proved by evidence.
- In this, the proof of one fact (basic fact) is taken as the proof of the other fact (presumed fact).

- Where there is an issue before a court the one that has to be proven is the disputed fact. However, the proof of such fact may not be needed if a fact the proof of which is equivalent to the proof of the disputed fact is proved.
- Here a party who wants to benefit from presumptions must go half way i.e. he must first prove *the basic fact* unless such fact is admitted by the other party.

- If the proof of A makes the existence of fact “B” more probable it is sensible and time saving to assume the truth of fact “B” until the adversary disproves it.
- Example
- Date of Conception Art. 3(1) of the civil code
- the date of birth- basic fact
- Date of conception – presumed fact
- So evidence shall be produced to prove the date of birth(basic fact) . Hence the truth of date of conception is assumed to be true.

- The fact that “B” is the father of the child is presumed fact, and the fact that “A” and “B” are husband and wife is a basic fact.
Art 126 of RFC.
- Read Art. 184 of the civil code and identify the basic fact and the presumed fact.
- Art 1162(1) of civil code
- What about Art. 20(4) of the FDRE Constitution?

- Presumptions can be divided as presumption of fact (permissive inferences) and presumption of law(mandatory)

Presumption of Fact

- is logical inferences that can be drawn by experience upon proof of the basic fact.
- are not mandatory, rather they are permissive in the sense that the court can take it or leave it at its discretion.

Presumptions of Law

- are presumption which the law requires the court to make.
- are mandatory in the sense that, where the law requires the court to presume a certain fact the court can not refuse to presume.
- These presumptions used the phrase “shall be deemed or presumed”.
- Presumptions of law are of two types: rebutable and irrebutable presumptions.

Irrebuttable/Conclusive Presumption

- is a presumption can not be disproved by another party.
- do not have the effect of shifting the burden of production to another party.
- Once the person who has the irrebuttable presumption on his side proves the basic fact then the other party will be won without counter proof on his side, even if he has possible grounds of disproving the allegations.
- Art. 128(2) RFFC

- Rebuttable Presumption
- is a presumption that can be disproved by another party.
- have the effect of shifting the burden of production to another party.
- Art. 169 of the revised federal family code
- Art 1147(1) of civil code
- Art 1196 of civil code etc...

Judicial Notice

- Facts of Common Knowledge
- Reference form authoritative sources
- Judicial notice of law
 - The federal Negarit gazeta establishment proclamation no 3/1995 of art 2(3)

Chapter Three

Relevance and Admissibility of Evidences

- Common to all criminal and civil cases is the need to identify the facts requiring proof in a particular case to which evidence must be directed.
 - *What is fact?*
- Fact means any thing or relations of things capable of being perceived by the senses and includes any mental conditions of which a person is conscious.

- A fact can be ;
 - ✓ physical (external) or
 - ✓ mental (internal or psychological)
 - ✓ Facts that can be perceived by our five senses organs are called physical (external) facts.
- Facts that cannot be perceived by our sense organs are called mental (internal or psychological) facts.
 - facts of intention, negligence (mainly advertent negligence),
 - facts of good faith and bad faith

- One may infer the mental condition of a person from his conduct or from his words.
- It is difficult to prove such psychological facts directly.
- Rather we can prove such facts by taking circumstances cumulatively.

- *What is fact in issue?*

- Fact in issue is the fact which is disputed between the parties and to be resolved by the help of evidence.
- Issue arises when a certain fact alleged to exist is denied by the other.

- Determination of fact in issue

- In criminal cases, the criminal code determines what the prosecution must prove in order to establish an accused's guilt.

- Example

- In a trial for robbery the prosecution has to prove all the elements that make up the offence of robbery under the specific provision if the offence is denied or admitted with reservation.

How do we determine fact in issue in civil matters?

- Read the relevant provisions of the civil procedure code. Art. 246 ff
- If admissions are made to all proposition of fact, which constitute the claim, there is no issue to be framed and the parties are called parties not at issue (see Art 254 of civ. p.c)

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- Collateral or a subordinate fact, which is not of direct relevance to the out come of the case, but which may nevertheless be raised at the trial.
- A collateral fact is a fact which proves the minor issue which is relevant to the major fact in issue.
- Example:- the competence of a witness to give evidence is a collateral fact in issue.

- Once the disputing fact(fact in issue) is determined the next step is proving or disproving its existence.
- But the critical point in here is what kind of evidence is required to prove or disprove a fact in issue?
- Can a party adduce any kind of evidence as he wishes?
- A person can't adduce an evidence haphazardly or as he likes.
- Hence the evidence should be relevant.

What is a relevant evidence?

- '*Relevant evidence*' means evidence having any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence.

❖ An evidence is said to be relevant when;

- ✓ there is some logical connection between it and the fact it's offered to prove or disprove.
- ✓ it has **probative value**-the ability to make a relevant disputed point more or less true.

- Art. 137(1) of the Cr.P.C
- Art. 263(1) of the Civ. P.C
- Art. 33 (3) of the Cr.P.C
- Art. 138 and Art 146 of Civ. P.C

Relevancy of circumstantial evidence

- circumstantial evidence is evidence that proves a certain fact indirectly.
- it depends on the surrounding circumstances.
- the circumstances are facts, which should be proved by, evidence and which enables us to make inferences about the existence and non-existence of the alleged or disputed fact.

- The disputed fact is not the one stands independently. Rather it is directly or indirectly connected with other facts in terms of place, time or occasions.
- The occurrence of a certain thing may contain the occurrence of the other thing or there may be another fact created following the occurrence of the fact in issue.
- Thus, as far as such circumstances have sufficient connection with the disputed fact they are relevant.

- Read the judgment of Federal Supreme Court Volume 13 File No. 75980
- Volume 19 File No. 109441 and 113464

Relevancy of Judicial decision

- One act may entail both civil and criminal liability, because most of the time a criminal act entails extra- contractual liability.
- **NB:- judgments of civil court are not relevant and binding evidence on criminal courts.**
- **Why?**
- This is due to the reason that the standard of proof required for each case, criminal or civil is different.

- In criminal courts, the standard of proof is the formula of beyond reasonable doubt while in civil cases decision is based on preponderance of evidence.
- Thus, evidence which is sufficient for civil cases may not be strong enough to prove guilt in criminal case.

- Is criminal court judgment relevant in civil cases dealing with the same matter?
- In common law countries
- proof of conviction or acquittal by a criminal court is not relevant in a civil court suit dealing with the same matter.

Reasons:-

1. the civil court should be as capable as the criminal court in deciding factual issues based on evidence presented before it than depending its decision on the "*opinion*" of the criminal court.
2. the degree of proof necessary to find a given fact in dispute is different in two courts.(beyond a reasonable doubt in criminal court, preponderance of evidence in civil cases)

- In civil law tradition (especially France and Italy) the judgment of criminal courts (whether conviction or acquittal) are binding on civil court.
- In France, if the claim for compensation is instituted in civil court, this court shall require the judgment of criminal court.
- And this civil court is bound to accept the criminal court Judgments as evidence.
- Q. What if a criminal case is not yet instituted or gets judgment? Shall a civil court wait the criminal court's judgment?

- Is evidence of the criminal court judgment admissible in a civil case in Ethiopia dealing with the same matter?
- A. Joined suits Arts. 154 ff Cr. P.C)

Art. 158. — Acquittal or discharge.

Where the accused is acquitted or discharged, the court shall not adjudicate on the question of compensation and shall inform the injured party that he may file a claim against the accused in the civil court having jurisdiction.

- Hence, the acquittal judgment of the criminal court does not have any relevancy in civil cases.

- **B. Non-Joined suits**

- This is the case when the civil and criminal suits are instituted independently.

Art. 2149. — *Effect of criminal on civil action.*

In deciding whether an offence has been committed, the court shall not be bound by an acquittal or discharge by a criminal court.

- Thus, a person who is acquitted in criminal case may be held liable in civil case.

- **Why?**
- the strict standard of proof in criminal case justifies the non-admissibility of criminal acquittal in civil case.
- Is criminal court conviction binding on civil courts?
- there is no provision which explicitly states as to whether a conviction is or is not binding on civil court.

- if we see from the angles of the standard of **proof** required in the two cases evidence which is sufficient for criminal cases is more than enough to prove liability in civil cases.
- It is argued that the civil court shall not require the production of additional evidences to determine the civil liability of the accused. Rather the civil court may require evidences to decide on the question of the amount of compensation to be awarded.

- Read the following judgments of FCCCD
- Volume 10 File No. 43843
- Volume 13 File No. 46386
- Volume 14 File No .78414
- Volume 15 File No. 78470

Relevancy of character evidence

- The word “character” includes both “*disposition*” and “*reputation*”.
- Disposition when the witness gives his own personal opinions about the character of an individual based on his personal dealings with the said individual.
- a particular instance for a particular character trait related by someone who has had enough experience with the individual(e.g. friend, work mate or family member) to know that disposition.
- Thus, this character is the one which may be known by someone who had enough experience with the individual than by the community in general.

- Reputation
- This is the general character of a person which is known by the community in general.
- It is the community opinion not the opinion of a particular individual that determines reputation.
- Here the opinion given in court must be based on what the witness feels to be the individual's reputation in the community for the particular trait not the individual's reputation for that trait with the witness based on particular dealings between the witness and the individual.

NB:- When we talk about “character”, it is the general character (general reputation)

- Character evidence is civil and criminal cases
- In civil cases, character is generally irrelevant.
- However, there is an exception in which character is relevant in civil cases. This is when character itself is in issue.
- Example:- Defamation Art. 2047 of Cv.C

- In criminal law, the focus is on the guilt or the blame worthy state of mind of the accused, that there is no crime where there is no intent to it.
- Thus, since a person reputed for his good character may not easily be suspected with commission of a crime with intent, the accused may be interested to bring evidence of his good character.

- Do you think a bad character is relevant in criminal cases?
- Art 138 of criminal procedure code disallows evidences of bad character before conviction.
- But Art 149 of cr.p.c freely allows both evidence of bad character and good character after conviction for the purpose of aggravating or mitigating sentence.
- Good character will be produced for mitigation and bad character for aggravation.
- What about character evidence Vs bail right?

- Relevant but inadmissible facts
- Relevancy is a necessary condition for admissibility.
- But it is not a sufficient condition to guarantee fact to be admissible .
- Why?
- there are legal prohibitions against some relevant facts to be produced as evidence for social and public policy reasons.

Admissibility

- An evidence that is not relevant is not admissible.
- If evidence is not relevant to some fact of consequence to determination of the action, then there is no reason to admit it.

NB:- relevancy does not guarantee admissibility.

➤ Because a relevant evidence may be excluded from being admissible.

- Art 138 of Cr.p.c., prohibits the disclosure of previous convictions of the accused.
- Why ? it creates an unfair prejudice.
- Art. 19(5) of the FDRE constitution says ...any evidence obtained under coercion shall not be admissible.

- An evidence may be rejected or not received by court for two reasons.
 - ✓ if it is not relevant and
 - ✓ if there is a legal prohibition behind it.
- ❖ Therefore, in short, to be admissible, evidence has to be relevant to a material proposition, without any exclusionary rule preventing admissibility.
- NB:- All admissible evidences are relevant but all relevant evidences may not necessarily be admissible evidences.

CHAPTER FOUR

ORAL EVIDENCE

- **What is oral evidence?**
- The Blacks law dictionary, which is the 8th edition, defines oral evidence as: **“Verbal evidence: which is given by word of mouth: the oral testimony given by witnesses in court”.**
- Oral evidence can also be defined as **spoken evidence given by a witness in court, usually under oath or affirmation.**

- Does oral evidence include sign language testimony?
- Oral evidence includes evidence that, by reason of any disability, disorder, or other impairment, a person called as a witness gives in writing or by signs or by way of any device.

Who is a witness?

- A witness is defined as: someone who has first hand knowledge about a **crime or dramatic event through their senses** (e.g. seeing, hearing, smelling, touching) and can help certify important considerations to the crime or event. [Ronald L. Melnick]

- What about experts?
- As one type of witness, an expert witness testifies not only what he has seen, heard, or otherwise observed personally but he may also offer an opinion applying his expert knowledge to facts he has not personally observed.

What is the importance of oral evidence?

- Proving a fact in issue.
- oral evidence is of high importance in case of absence of documentary evidence.
- This is true especially in criminal cases that most of time it is hard to get documentary evidence.
- Hence, the possible option to prove the alleged fact is by producing oral evidence.

- Since oral evidence is given by a person who has personally seen, heard, or otherwise observed, its credibility is high.
- That is why witnesses are described as “the eyes and ears of justices”.

- Oral evidence In different legal systems
- Adversarial Vs inquisitorial
 - Witness preparation
 - Here say evidence

Competence of witnesses

- competence refers to the capacity of a person to do something.
- competency of a witness takes to the inquiry as to which persons are capable to testify or are competent witnesses.
- Hence, a competent witness is one who is fit to give his testimony before courts or a judicial proceeding under oath or affirmation.

- An oath is a verbal promise to tell the truth made while holding Holy Books.
- An af fimation is a verbal, solemn and formal declaration, which is made in place of an oath.

- A competent witness is one who is able to testify or one whom nothing prevents from testifying unless there are some conditions which bar him from doing so.

A) Types of Competency of Witnesses

- ✓ witness' competency is classified in to two;
 - ✓ general competency and
 - ✓ special competency.
- i) General Competency
- General competency refers to the witness' ability to testify to facts he has observed.
- It is about telling to the court what one has heard, seen, smelt, touched, etc.
- It is widely accepted that every body is presumed to be competent.
- That is, with the exception, perhaps, of certain witnesses, general competency is presumed.

- To be included as a witness in the general competency a person must possess the organic and moral capacities.
- He/she needs to possess the ability to understand questions and give rational answers.
- To put it in another way, competency of a person is determined by his ability to perceive, remember, communicate and understand the duty to tell truth.

- Special competency refers to a witness's ability to testify to opinions or conclusions he has arrived at by evaluating facts he has observed, facts presented to him by counsel or a combination of both types of facts.
- That is, special competency refers to the ability to analyze facts about which one testifies.
- For example, if you go to a hospital you don't tell your illness to the doctor, but you tell the facts about your illness, then, **he analyzes the facts and tells you what you are suffering from.**

- Unlike general competency of witnesses, special competency is not presumed.
- Special competency of witnesses is subdivided in to two: layman's opinion, and expert opinion given as testimonies.

- Grounds of incompetence
- The competency of ordinary witnesses has its own exceptions.
- These exceptions are the incompetence of the ordinary witnesses due to lack of organic and moral capacities of presumed witnesses.
- the competency of ordinary witness is the general rule while their incompetence is the exception.

1. Mental incapacity

- The ground covers mostly the organic incapacity aspects of the incompetency of witnesses.
- It comprises children, insane, and intoxicated persons, whose conditions may be long lasting or intermittent in nature.
- ❖ The ability to understand the duty to speak the truth.
- ❖ the ability to understand the questions put to them and rationally answer them.

2. Physical incapacity

- This covers those persons, who have visual, hearing, and speaking deficiencies.
- Such persons can, in principle, perceive the occurrence or non-occurrence of certain events.
- However, defects such as blindness, deaf or dumb may impair the power of observation to make a given witness incompetent to testify.
- NB: according to the general rule, physical incapacity is no bar to a witness's competency as long as he can understand the questions put to him and give rational answers to those questions.

3. Legal interdiction (Conviction of a crime)

- Read Article 123 (a) of the Criminal Code.
- Art 142 of the Criminal Procedure Code, and Art 261(1) Art. 268 of the Civil Procedure Code.

4. Interest in the out come of the case as ground of incompetence

- ✓ parties to the case, consanguinal and af fiaf relatives, other emotional grounds and so on prevented from being witness but these days there is no prohibition.

- **Examination of witness**
 - ✓ **Examination-in-chief**
 - ✓ **Cross examination**
 - ✓ **Re-examination**

Hearsay evidence

- **Black's Law** defines hearsay as:
 - The term applies to that piece of testimony given by a witness who relates, not what he knows personally.
But who others told him or what he has heard said by others.

- Hearsay is what a witness who does not have first hand information but heard about something from a person and testifies before a court.
- Is hear say relevant/admissible?
- In common law legal system hearsay evidence as a rule is not admissible. But in civil law legal system it is up to the judge to weigh.

- The basic justifications for exclusion of hearsay evidence are:
 - **Lack of cross- examination**
 - **Absence of oath**
 - **Testimonial infirmities**

Exception to hearsay evidence

- There are certain exceptions to the hearsay rule, which makes the hearsay evidence admissible. Some of these exceptions are:
 - i. Dying Declaration
 - ii. Statements made in the ordinary course of Business
 - iii. Declarations against interest
 - iv. Statements of opinion as to the existence of a public or general right or custom.

• What about Ethiopia?

- In Ethiopia some argue that hearsay evidence is admissible as a rule, not as an exception.
Art. 137(1) C.Pr.C+ Art. 263(1) of Civ. Pr.Code.
- Others based on Art. 20(4) of the FDRE constitution argue that it should only be **admitted** in exceptional circumstances as that of common law countries.
- The practice:- there is no uniform application of the rule; some judges admit it while others do not.
- Volume 19 File No. 109441
- Proc. No 652/2001 Art. 23(2)

Exclusionary rule

1. Privileges

- privilege means a freedom from compulsion to give evidence, or a right to prevent or bar evidence from other sources, usually on grounds unrelated to the goals of litigation.
- In the absence of privilege, parties, witnesses, and others, can be compelled by a court to give testimony or other material they may have that is needed for court proceeding even if it is damaging to themselves or others.

- Privileges sometimes interfere with the truth-seeking function of the law.
- Hence, it should be borne in mind that privileges operate to exclude good proof, in the name of some other social objectives. For this reason, courts often say privileges should be narrowly construed.
- Most privileges are designed to promote certain kinds of relationship, and particularly to promote confidential communication with in the socially desirable relationships.

Types of privileges

1. The right against self- incrimination
2. Governmental privileges
3. Professional confidentiality
 - Attorney-client privilege
 - Doctor-patient privileges
4. Marital privileges
 - i. The “conf idential communications” privilege in the marital context
 - ii. The “Adverse Spousal Testimony” Privilege (as Distinct from the communications privilege)

Chapter V

Real Evidence

- **It is a mechanism of proof**
- Real evidence is a type of evidence for which the court can personally inspect and make inferences and conclusions on the existence or non-existence of fact to which the evidence is sought to prove.
 - **Oral Vs Real Evidence.**
- Oral evidence- the court depends on observation of third parties.
- Real evidence- the court can personally inspect and make inferences and conclusions.

- Real evidence comprises of documents and physical objects in various forms.
- Remember:- documents and physical objects to be real evidences should satisfy the tests of
 - authentication and
 - corroboration, respectively.

Types of real evidences

A. Demonstrative evidence

B. Documentary evidence

A. Demonstrative evidence

- It is otherwise called physical evidence.
- It concerns it self with any type of physical objects which are capable of being inspected by the court and demonstrate the existence of a fact in issue.

- any evidence introduced in a trial in the form of a physical object, intended to prove a fact in issue based on its demonstrable physical characteristics.
- **Physical evidence can conceivably include all or part of any object.**
- **Example:-** DNA left by the attacker on victim's body, the body itself, the weapon used, pieces of carpet spattered with blood, or casts of footprints or tire prints found at the scene of the crime.

- Demonstrative evidence is evidence in the form of a representation of an object.
- Examples include photos, x-rays, videotapes, movies, sound recordings, diagrams, maps, drawings, graphs, animations, simulation, and models.
- It is useful for assisting a finder of fact (fact-finder) in establishing context among the facts presented in a case.

B. Documentary evidence

- ❑ Documentary evidence is a type of written proof that is offered at a trial to establish the existence or nonexistence of a fact that is in dispute.
- ❑ Documentary evidence is any inscription found in any material for which the content are submitted as proof.
- ❑ **Example:-** Letters, contract, deeds, license, certificate, ticket, or other writing are documentary evidence.

- What is the role of evidence in providing the suspect and guilt?

Best Evidence Rule

- Otherwise called the original writing rule.
- the rule requires the party to submit the original unless the party is unable to do so.
- The court can accept a secondary copy where it is satisfied that the original was lost, destroyed or otherwise unavailable all in good faith.
- The rule excludes inferior evidence when better is available and permit inferior evidence when better is not available.

- This rule arises from a time before the advent of computers and photocopiers when all copying was done by hand. 18th Century.
- The rule's original purpose was "simply to avoid fraud and forgery."
- A document is admissible if the original is submitted.
- Later development:- if it is relevant the goodness or badness of it goes only to weight and not to admissibility.